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# OTHER CHILD VISAS



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## OTHER CHILD VISAS

The UK offers additional UK Child Visa routes for children in circumstances where a parent holds, or is being granted, limited leave to enter or remain on a route to settlement, or a parent or relative is present and settled in the UK, or is being admitted for settlement, but not as a Partner or Parent under Appendix FM of the Immigration Rules or as a Points-Based System migrant.

If the parent of the child holds, or is being granted, leave as a **Partner** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/>) or **Parent** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/parent-of-a-child-visa/>) under Appendix FM of the Immigration Rules then the child should apply for a Child of a Partner or Parent Visa (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/child-of-a-partner-or-parent-visa/>) instead.

If the parent of the child holds, or is being granted, leave as a Points-Based System migrant then the child should apply as a Dependent Child of a Points-Based System (PBS) Migrant (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/family-member-pbs-migrant-visa/>) instead.

If the child is British, has indefinite leave to remain or is otherwise settled in the UK then they do not need to apply for a visa in order to enter the UK.

## Requirements for a UK Child Visa as the Child of a Parent with Limited Leave to Enter or Remain in the United Kingdom

This route is suitable for a child who is seeking leave in line with a parent who is being granted, or has already been granted, limited leave to enter or remain on an immigration route that leads to settlement in the UK, other than as a Partner or Parent under Appendix FM or as a PBS migrant.

In order for your child to qualify for a Child Visa to enter the UK as the child of a parent with limited leave to enter or remain in the UK on a route to settlement (other than as a Partner or Parent under Appendix FM or as a PBS migrant), you will need to satisfy UK Visas & Immigration that:

- Your child is under the age of 18 at the date of application;
- Your child has not formed an independent family unit;
- Your child is not leading an independent life;
- Either:
  - One parent is present and settled in the UK or being admitted to the UK on the same occasion for settlement and the other is being, or has been, given limited leave to enter or remain with a view to settlement; or
  - One parent is being, or has been, given leave to enter or remain with a view to settlement, and has had sole responsibility for the child's upbringing; or
  - One parent is being, or has been, given limited leave to enter or remain with a view to settlement, and there are "serious and compelling family or other considerations" which make the child's exclusion undesirable, and suitable arrangements have been made for the child's care;
- Your child satisfies a financial requirement;
- Your child satisfies an accommodation requirement.

The exact requirements your child will need to satisfy may vary depending on your personal circumstances and those of your child. You may want to speak to an immigration lawyer for expert advice.

**To discuss a Child Visa application for your child with one of our immigration barristers, contact our UK Child Visa lawyers on 0203 617 9173 or complete our enquiry form below.**

## **Requirements for a UK Child Visa as the Child of a Parent or Relative Present and Settled in the United Kingdom or Being Admitted for Settlement in the UK**

This route is suitable for a child who is seeking indefinite leave to enter the UK in line with a parent or relative who is either already present and settled in the UK or is being admitted for settlement in the UK, other than as a Partner or Parent under Appendix FM or as a PBS migrant.

In order for your child to qualify for a Child Visa to enter the UK as the child of a parent or relative who is present and settled in the UK or being admitted for settlement in the UK (other than as a Partner or Parent under Appendix FM or as a PBS migrant), you will need to satisfy UK Visas & Immigration that:

- Your child (or child relative) is under the age of 18 at the date of application;

- Your child (or child relative) has not formed an independent family unit;
  - Your child (or child relative) is not leading an independent life; <https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>
- (2) Either:
- Both parents are present and settled in the United Kingdom; or
  - Both parents are being admitted on the same occasion for settlement; or
  - One parent is present and settled in the United Kingdom and the other is being admitted on the same occasion for settlement; or
  - One parent is present and settled in the United Kingdom or being admitted on the same occasion for settlement and the other parent is dead; or
  - One parent is present and settled in the United Kingdom or being admitted on the same occasion for settlement and has had sole responsibility for the child's upbringing; or
  - One parent or a relative is present and settled in the United Kingdom or being admitted on the same occasion for settlement and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care;
  - Your child (or child relative) satisfies a financial requirement;
  - Your child (or child relative) satisfies an accommodation requirement.

The exact requirements your child will need to satisfy may vary depending on your personal circumstances and those of your child. You may want to speak to an immigration lawyer for expert advice.

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## Child Has Not Formed an Independent Family Unit

Your child (or child relative if the child is seeking indefinite leave to enter the UK) must not be living independently as part of another family unit. Typically, this means that the child should not be living together as part of another household with a spouse or civil partner, fiancé or proposed civil partner or unmarried partner.

## Child Is Not Leading an Independent Life

Similarly, a child who is living an independent life will not qualify for a Child Visa under the family life provisions of Part 8 of the Immigration Rules set out here. This means that your child (or child relative if the child is seeking indefinite leave to enter the UK) must not have formed, through choice, a separate social unit.

In practice, this means that the child will normally be living with their parent(s) or relative (except where they are in full-time education at a boarding school, college or university), not be employed full-time and be wholly or mainly dependent upon their parent(s) or relative for

financial and emotional support.

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## (/) Sole Responsibility for the Child's Upbringing

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Sole responsibility means that one parent has abandoned parental responsibility, and the other parent is solely responsible for making all the important decisions in relation to the day-to-day care and upbringing of the child.

If relying on sole responsibility, your child will normally live with you and not their other parent and you will have had and continue to have care and control of your child. The Home Office will expect to see comprehensive supporting documentary evidence confirming that you are solely responsible for your child's welfare and that others do not share this responsibility for your child. Our immigration barristers can advise you on the documents that are required by the Home Office in order to demonstrate sole responsibility for a child as part of a Child Visa application.

- **Understanding Sole Responsibility in Immigration Law**  
(<https://immigrationbarrister.co.uk/understanding-sole-responsibility-in-immigration-law/>)

## Serious and Compelling Family or Other Considerations

When considering whether there are serious and compelling family or other considerations which make the child's exclusion undesirable, the Home Office will consider what the child's welfare and best interests require. This assessment is highly fact-sensitive.

Family considerations will require an evaluation of the child's welfare, including their emotional needs. The family considerations must be sufficiently serious and compelling to require admission to the UK.

Other considerations will involve an evaluation of any other aspect of a child's life that could require their admission. Relevant considerations might include the social and economic environment in which the child lives, any evidence that the child is being neglected or abused and whether the child has any other unmet needs that should be catered for. The circumstances, or combination of circumstances, must be sufficiently serious and compelling to require admission.

When relying on serious and compelling family or other considerations, the Home Office will also need to be satisfied that suitable arrangements have been made for the child's care in the UK.

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(n) order for your child to qualify for a UK Child Visa to enter the UK as the child of a parent or with limited leave to enter or remain in the UK on a route to settlement or as the child of a parent or relative who is present and settled in the UK or being admitted for settlement in the UK (other than as a Partner or Parent under Appendix FM or as a PBS migrant), you will need to satisfy the Home Office that your child will be maintained adequately by the parent or parents (or relative if the child is seeking indefinite leave to enter the UK) without recourse to public funds.

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Office application fee to switch into the Child Visa category from within the UK or extend a Child Visa is currently £1,033. (<https://www.google.co.uk/search?q=richmond+chambers+in>)

## How Our Immigration Barristers Can Help

Our immigration barristers regularly assist foreign national children to relocate to, and settle in, the UK with their parents and relatives. We have assisted scores of foreign national children to prepare and submit successful Child Visa applications.

Whether you require expert advice on the requirements of the Immigration Rules for a Child Visa, an independent assessment of your prospects of qualifying for a Child Visa or professional assistance with preparing a Child Visa application, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team of immigration barristers, dedicated to providing clear and reliable immigration advice to individuals applying for a Child Visa as part of a professional and friendly service.

## WE CAN ALSO ASSIST WITH

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Applications for Child of a Partner or Parent Visas




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Applications for Dependent of a Points-Based System Migrant visas




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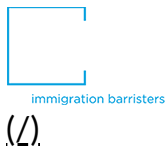
Fresh applications and Immigration Appeals for Children



## WHAT CAN WE HELP YOU WITH?

To discuss a UK Child Visa application for your child with one of our immigration barristers, contact our Child visa team on 0203 617 9173 or complete our enquiry form.

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